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April 21, 2025

ENGROSSED HOUSE
BILL NO. 2012

By: Pae, Waldron, May, and
McCane of the House

and

Gollihare of the Senate

An Act relating to public health and safety; amending 63 O.S. 2021, Section 2-1101, which relates to harm-reduction services; deleting sunset date; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 63 O.S. 2021, Section 2-1101, is amended to read as follows:

Section 2-1101. A. Until July 1, ~~2026~~ 2027, the following are hereby authorized to engage in harm-reduction services:

1. Government entities including, but not limited to, the State Department of Health and the Department of Mental Health and Substance Abuse Services; provided, no state dollars shall be used to purchase hypodermic needles;

2. Religious institutions or churches;

3. Nonprofit organizations;

4. For-profit companies;

1 5. Nongovernment entities partnering with a governmental
2 agency; and

3 6. Tribal governments.

4 B. Those offering harm-reduction services shall register with
5 the State Department of Health and may engage in the following
6 activities in order to reduce the use of drugs, prevent outbreaks of
7 infectious diseases and reduce morbidity among people who use
8 injection drugs:

9 1. Offer referrals and resources to treat substance use
10 disorders;

11 2. Provide education on the risk of transmission of infectious
12 diseases, including human immunodeficiency virus (HIV) and viral
13 hepatitis;

14 3. Rapid testing for HIV, hepatitis C and sexually transmitted
15 infections (STIs);

16 4. Referrals for medical and mental health services;

17 5. Collect used hypodermic needles for safe disposal;

18 6. Possess and distribute hypodermic needles, cleaning kits,
19 test kits and opioid antagonists; and

20 7. Rapid substance testing products used, intended for use, or
21 fashioned specifically for the use in identifying or analyzing the
22 potency or toxicity of unknown substances.

23 C. Registered providers of harm-reduction services shall report
24 at least quarterly to the State Department of Health and annually to

1 the Governor, the Speaker of the House of Representatives, and the
2 President Pro Tempore of the Senate:

3 1. The number of clients served including basic demographic
4 information;

5 2. Number and type of referrals provided;

6 3. Number of syringes, test kits and antagonists distributed;

7 4. Number of used syringes collected; and

8 5. Number of rapid HIV and viral hepatitis tests performed
9 including the number of reactive test results.

10 D. The State Commissioner of Health shall promulgate rules for
11 the implementation of this section.

12 SECTION 2. This act shall become effective November 1, 2025.

13 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
14 April 21, 2025 - DO PASS
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